

Case on Impeachment Trial of President (Yoon Suk-yeol)

[2024Hun-Na8, April 4, 2025]

* First Draft

In this case, the Court held that the President (Yoon Suk-yeol) is removed from office on the grounds that he violated the Constitution and statutes in the course of performing his official duties and that such violations were grave.

Background of the Case

1. Respondent declared emergency martial law (hereinafter referred to as the “Martial Law”) through a public address to the nation at around 22:27 on December 3, 2024. The content of the address was as follows: “The Republic of Korea is in a state of paralysis due to the opposition party’s actions such as impeachment, special prosecution, and budget cuts. In order to defend the liberal Republic of Korea from the threat of North Korean communist forces and to protect the constitutional order, I hereby declare emergency martial law.” Respondent deployed military and police forces to the National Assembly and other institutions, and, through a martial law commander, issued Martial Law Command Proclamation No. 1 (hereinafter referred to as the “Proclamation”) at around 23:23 on December 3, 2024.

At approximately 01:02 on December 4, 2024, a resolution demanding the lifting of the Martial Law, proposed by 170 members of the National Assembly, was adopted with 190 votes in favor out of 190 members present during the 15th plenary of the 418th session (regular) of the National Assembly. At around 04:20 on the same day, Respondent delivered a public address announcing the end of the Martial Law, and at approximately 04:29, the State Council approved the resolution to lift the Martial Law.

2. On December 4, 2024, an impeachment resolution against Respondent (hereinafter referred to as the “First Impeachment Resolution”) was proposed. On December 7, 2024, a vote was held on the First Impeachment Resolution during the 17th plenary of the 418th session (regular) of the National Assembly, but the vote failed to proceed due to the lack of a quorum.

On December 12, 2024, 190 members of the National Assembly repropose an

impeachment resolution against the President (Yoon Suk-yeol) (hereinafter referred to as the “Impeachment Resolution at Issue”). On December 14, 2024, the Impeachment Resolution at Issue was adopted with 204 votes in favor out of the 300 incumbent members during the 4th plenary of the 419th session (extraordinary) of the National Assembly. On the same day, the impeachment prosecutor requested an impeachment trial of Respondent by submitting the original copy of the impeachment resolution to the Court.

Subject Matter of Review

The subject matter of review in this case is whether President Yoon Suk-yeol violated the Constitution or statutes in the course of performing his official duties and whether a decision to remove him from office should be rendered.

Summary of the Decision

1. Discussion of justiciability

A. Judicial reviewability

The Constitution and the Martial Law Act set forth, *inter alia*, the requirements and procedures for the declaration of martial law. An impeachment trial is a constitutional adjudication that deprives a high-ranking public official of authority for violating the Constitution or statutes, thus safeguarding the constitutional order. Therefore, even if the declaration of emergency martial law involves a highly political decision, both its constitutionality and statutory legality are subject to review in impeachment trials.

B. Assessment of the reproposal of an impeachment resolution

Article 92 of the National Assembly Act proclaims the rule against reproposal or reintroduction of the same question during the same session, providing that “A question that is rejected shall not be proposed or introduced again during the same session.” The Impeachment Resolution at Issue was proposed during the 419th session (extraordinary) of the National Assembly and therefore was not repropose during the same session as the First Impeachment Resolution, which failed to reach a vote during the 418th session (regular). Thus, it does not violate the rule against reproposal or reintroduction of the same question during the same session.

C. Assessment of the allegation of a withdrawal or change in the grounds for impeachment

Petitioner initially characterized the facts in the impeachment resolution as violations of the Criminal Act, such as insurrection. After the filing of the impeachment petition, however, Petitioner recharacterized the same facts as violations of the Constitution. This merely amounts to a withdrawal or change in the legal provisions invoked while maintaining the underlying facts. Therefore, it does not constitute a withdrawal or change in the grounds for impeachment.

2. Discussion of the declaration of the Martial Law

A. Violation of the substantive requirements for declaring emergency martial law

(1) In light of, *inter alia*, the intent of recognizing the State's emergency powers and the relevant provisions, including Article 77, Section (1) of the Constitution and Article 2, Section (2) of the Martial Law Act, the substantive requirements for the declaration of emergency martial law are as follows: a) the actual occurrence of belligerency or extreme disturbances of social order that considerably impede the performance of the administrative and judicial functions of the State “in time of war, armed riot or other equivalent national emergency”; b) the need to cope with a military necessity or maintain public safety and order through the mobilization of military forces; and c) the purpose of declaring emergency martial law to address a military necessity or to maintain public safety and order.

Therefore, emergency martial law may not be declared preemptively or preventively merely on the grounds of a potential crisis. Nor may it be declared to pursue an affirmative objective, such as the promotion of public welfare.

(2) A “national emergency equivalent to a time of war or armed conflict” refers to a grave crisis in which the existence of the State or the maintenance of the constitutional order is placed in jeopardy due to events such as a) an external incursion that does not amount to war, b) disruption of social order by a group or crowd not aiming to usurp national territory or subvert the constitutional order, or c) disruption of social order caused by natural disasters—such that the crisis cannot be addressed through the ordinary exercise of governmental powers under the constitutional order. Although Respondent is granted a certain degree of discretion in determining whether such a situation has actually arisen, there must be a crisis

that objectively justifies Respondent's judgment. If Respondent's determination is manifestly unreasonable or arbitrary, it constitutes a violation of both Article 77, Section (1) of the Constitution and Article 2, Section (2) of the Martial Law Act.

(3) Respondent argues that a grave crisis of this nature arose due to the opposition-led National Assembly, in which the opposition party, holding a majority of seats, pursued impeachment in an unprecedented manner, unilaterally exercised its legislative powers, and attempted to cut the government budget. However, at the time the Martial Law was declared, only two impeachment trials were underway—one against a single prosecutor and another against the chairperson of the Korea Communications Commission. As for the bills that Respondent claimed problematic, their legal effect had not yet come into force, as Respondent had either requested reconsideration or withheld their promulgation. The 2025 budget proposal could not have had any impact on the situation at the time of the declaration of the Martial Law, when the 2024 budget was still in effect. Moreover, this budget proposal had merely passed the National Assembly's Special Committee on Budget and Accounts and had not yet been approved by a plenary session of the National Assembly. Respondent also contends that he declared the Martial Law to dispel suspicions of electoral fraud. However, the mere existence of such suspicions is not sufficient to establish that a grave crisis situation had actually occurred.

In sum, even when considering all of the circumstances alleged by Respondent, the Court cannot find that a crisis of such severity existed at the time of the declaration of the Martial Law as to objectively justify Respondent's judgment.

(4) The governmental paralysis caused by the exercise of the National Assembly's powers and the suspicions of electoral fraud, both asserted by Respondent, are matters that must be addressed through political, institutional, or judicial means. Thus, there was no need to mobilize military forces.

(5) Respondent claims that the Martial Law was intended to serve as a "warning-type" or "appeal-type" martial law to inform citizens of the opposition party's tyranny and the national

crisis. However, the Court does not find that Respondent declared martial law solely for such purposes, and issuing a warning or making an appeal, in and of itself, does not constitute a legitimate purpose for declaring martial law.

(6) Accordingly, the declaration of the Martial Law failed to meet the substantive requirements for the declaration of emergency martial law.

B. Violation of the procedural requirements for declaring emergency martial law

(1) Under the Constitution and the Martial Law Act, both the declaration of martial law and the appointment of a martial law commander must undergo deliberation by the State Council. However, Respondent neither issued a procedurally lawful notice convening the State Council meeting nor conducted the meeting in accordance with its standard procedures, such as calling the meeting to order, presenting agenda items, providing explanatory statements, holding discussions, declaring the meeting adjourned, and preparing the minutes. Respondent also neither explained the specific details of the Martial Law—such as its necessity, the date and time of enforcement, and the appointment of the martial law commander—to other members of the State Council, nor provided them with the opportunity to express their views. Considering the overall circumstances at the time, Respondent declared the Martial Law and appointed the martial law commander without subjecting these matters to deliberation by the State Council.

(2) Respondent proceeded to declare the Martial Law despite the Prime Minister and relevant State Council members not affixing their signatures to the emergency martial law declaration. Additionally, Respondent did not announce the date, time, and areas of the enforcement of the Martial Law or the identity of the martial law commander. Nor did Respondent notify the National Assembly of the declaration without delay after it was made.

(3) Accordingly, the declaration of the martial law in this case also failed to meet the procedural requirements for declaring emergency martial law.

3. Assessment of the deployment of military and police forces to the National Assembly

By deploying military and police forces to the National Assembly, Respondent restricted the Speaker and members of the National Assembly—who were converging to deliberate on a resolution demanding the lifting of martial law—from entering the Assembly, while also ordering that they be pulled out. This violated, *inter alia*, Article 77, Section (5) of the Constitution—which grants the National Assembly the authority to request the lifting of martial law—representative democracy, and the principle of the separation of powers. It also infringed, *inter alia*, the National Assembly members’ authority to deliberate and vote and their immunity from arrest. Further, Respondent was involved in “issuing orders to locate political party leaders and others for the purpose of arresting them if necessary.” This infringed freedom of political party activities.

By deploying troops for the political purpose of obstructing the National Assembly’s exercise of its authority, Respondent placed soldiers in confrontation with ordinary citizens. This constituted a violation of Article 5, Section (2) and Article 74, Section (1) of the Constitution as it involved exercising the powers of the Commander-in-Chief of the Armed Forces in a manner contrary to the duty of the Armed Forces to maintain political neutrality.

4. Assessment of the issuance of the Proclamation

Respondent, through the Proclamation, banned the activities of the National Assembly, local legislative bodies, political parties, and all political activities. This violated, *inter alia*, Article 77, Section (5) of the Constitution granting the National Assembly the authority to request the lifting of martial law, Article 8 of the Constitution establishing the political party system, the principle of popular sovereignty, and the basic order of liberal democracy. It also infringed, *inter alia*, the National Assembly members’ authority to deliberate and vote and the essential elements of local autonomy.

Further, Respondent, through the Proclamation, prohibited a wide range of acts and allowed arrest, detention, seizure, and search without a warrant against those who violated this prohibition. This violated Article 77, Section (3) of the Constitution and Article 9, Section (1) of the Martial Law Act, both of which set forth the requirements for restricting fundamental rights under emergency martial law, and the warrant requirement. As a result, Respondent infringed, *inter alia*, citizens' fundamental political rights, freedoms of speech, the press, assembly, and association, freedom of political parties, right to collective action, freedom of occupation, and physical freedom.

5. Assessment of the search and seizure conducted against the National Election Commission

Respondent, in the capacity as the head of the executive branch, directed a warrantless seizure and search using military force against election commissions, an independent constitutional body. This violated the warrant requirement and infringed the independence of election commissions.

6. Assessment of the attempt to track the whereabouts of members of the legal profession

Respondent, in his capacity as the head of the executive branch, was involved in giving instructions to determine the locations of a former Supreme Court Chief Justice and a former Supreme Court Justice for the purpose of arrest if deemed necessary. Such conduct placed pressure on sitting judges by creating the perception that they, too, could at any time become subjects of arrest by the executive branch. Therefore, it constitutes an infringement upon the independence of the judiciary.

7. Removal of Respondent from office

A. Respondent undermined popular sovereignty and democracy, disregarded the constitutional structure of governance, and extensively infringed the fundamental rights of citizens. These actions violated the State's fundamental principles of the rule of law and democracy, undermining the constitutional order, and seriously endangering the stability of the democratic republic. The National Assembly was able to quickly pass a resolution calling for the lifting of martial law due to the resistance of citizens and the passive conduct of the military and police forces. The fact that the resolution demanding the lifting of martial law was eventually passed does not negate the seriousness of Respondent's violations of the law.

Moreover, Respondent recreated a history of the State's abuse of emergency powers, shocking citizens, and triggering enormous repercussions across social, economic, political, and diplomatic sectors. He also caused a loss of public trust in the exercise of presidential authority. These acts of Respondent in violating the Constitution and statutes represent a betrayal of the people's trust and constitute grave violations of the law that are unpardonable from the standpoint of protecting the Constitution. Therefore, the benefits of protecting the Constitution by removing Respondent from office overwhelmingly outweigh the national loss that would result from the removal of the President.

B. The Republic of Korea shall be a democratic republic (Constitution, Article 1, Section (1)). Democracy is founded on a pluralistic world view that presupposes trust in individuals' autonomous reason and acknowledges the relative truth and rationality of diverse political perspectives. Its essence lies in an autonomous and cooperative process of public decision-making, grounded in mutual respect and benevolence among equal fellow citizens. As such, democracy is a political system with exceptional adaptability in overcoming conflict and tension and in discovering the best course of action—so long as its self-correcting mechanisms function properly and there is trust in those mechanisms.

Respondent may have regarded the exercise of power by the opposition-led National Assembly as an abuse of authority or an act causing governmental paralysis. Even so,

Respondent should have engaged in more active dialogue and compromise within the bounds compatible with the essence of democracy while ensuring checks and balances by relying on the remedies envisioned by the Constitution. However, Respondent undermined the foundations of democratic politics by treating the National Assembly, the representative of the people, not as an equal partner in governance but as an object of exclusion. Moreover, Respondent failed in his responsibility and duty, as the President of all citizens, to look beyond his supporters and to unify the broader social community.

In conclusion, Respondent violated the Constitution and statutes, thereby abandoning his responsibility and duty to safeguard the Constitution and gravely betraying the trust of the Korean people, the sovereigns of the democratic republic. Accordingly, Respondent is removed from the office of the President.

Summary of Concurring Opinion of Justices Lee Mison and Kim Hyungdu

According to Article 40 of the Constitutional Court Act, statutes and regulations relating to criminal litigation apply *mutatis mutandis* to impeachment trials insofar as such application is not contrary to the nature of such trials. In light of, *inter alia*, the nature of impeachment trials, the differences between those trials and criminal proceedings, and the need for expeditious proceedings, the Criminal Procedure Act provisions concerning the hearsay rule may be relaxed in impeachment trials. Therefore, transcripts of suspect interrogations or non-suspect interviews may be admitted as evidence to the extent that the lawfulness of the procedure is guaranteed. In addition, the minutes of the National Assembly that contain the statements of persons related to the case are, as a matter of course, recognized as admissible evidence, as they are deemed a “document prepared under other particularly trustworthy circumstances” under Article 315, Item 3 of the Criminal Procedure Act.

Summary of Concurring Opinion of Justices Kim Bok-hyeong and Cho Hanchang

Given, *inter alia*, the significance of impeachment trials and the guarantee of Respondent’s right to present a defense, the hearsay rule under the Criminal Procedure Act should be applied more strictly in future impeachment trials. The recognition of grounds for impeachment should, to the extent possible, rely on evidence directly examined before the

Justices in open court, as in criminal proceedings. Further, it is desirable to ensure the opportunity for cross-examination with respect to hearsay evidence. Thus, transcripts of interrogations or interviews for which Respondent's right to cross-examination was not guaranteed may be deemed inadmissible as evidence. In addition, it is difficult to apply Article 315, Item 3 of the Criminal Procedure Act, as it stands, to the minutes of the National Assembly as well.

Summary of Concurring Opinion of Justice Cheong Hyungsik

According to Article 92 of the National Assembly Act, an impeachment resolution, like any other question, may not be proposed again during the same session once it has been rejected, but it may be proposed again in a different session. However, allowing the unlimited reproposal of an impeachment resolution may lead to, *inter alia*, instability in the status of high-ranking public officials, impairment of governmental functions, and the politicization of the impeachment system. Therefore, the legislature should consider enacting a provision that limits the number of times an impeachment resolution may be repropounded even across different sessions if it has been rejected in the National Assembly.

* This translation is provisional and subject to revision.